Parshas Ki Seitzei

The Space Between Seeing and Taking

Desire and Daas · Davar Sheyesh Lo Matirin · The Chain of Consequence · Elul and Return

I. A Parsha That Never Lets Go

Parshas Ki Seitzei has always held a personal place. It was this writer's Bar Mitzvah parsha, though precisely how many years ago is a detail best left unstated. A birthday just passed, and a certain young daughter has now determined that her father is either twenty-five or twenty-six years old. There is no obligation to lie, but there is also no particular obligation to correct her. Let her think what she wants.

Ki Seitzei is one of the most densely packed parshiyos in the Torah. Seventy-four of the 613 mitzvos appear here, roughly twelve percent of all the mitzvos concentrated in a single parsha that is not even especially long. The haftarah, meanwhile, is only ten pesukim. A parsha bursting with law paired with a haftarah of remarkable brevity. And yet, as we will see, the two speak to each other in ways that illuminate the entire month of Elul.

II. Going Out to War

The parsha opens with a striking image:

כי תצא למלחמה על אויביך

"When you go out to war against your enemies."
— Devarim 21:10

What kind of war is this? Within Torah, there are different categories of war. There is a *milchemes mitzvah*, a war that Hashem commands. There is defensive warfare. And there is a *milchemes reshus*, a discretionary war, a war of expansion or conquest. Chazal understand the opening discussion here in the context of a milchemes reshus.

The Torah is written for human beings, not for malachim. It speaks to the human condition and to human nature. A soldier has left home. He is separated from his family, his routines, the anchors of his daily life. He is surrounded by adrenaline, fear, excitement, and the emotional intensity of battle. He is in a place where normal boundaries feel distant.

And then:

וראית בשביה אשת יפת תואר וחשקת בה

"You see among the captives a woman of beautiful appearance, and you desire her."
— Devarim 21:11

The Torah understands that human beings can be caught up in a moment. We become overwhelmed by adrenaline, by hormones, by emotion and circumstance. We can become temporarily disconnected from the lives and responsibilities that normally anchor us. And in that disconnected state, we can make permanent decisions inside temporary emotional realities.

III. The Torah's Response: Creating Time

Chazal tell us that the Torah speaks here כנגד יצר הרע, in response to the yetzer hara. The Torah does not pretend the desire does not exist. It does not dismiss the soldier's attraction as something that a righteous person would never feel. It acknowledges the reality of the moment and then does something extraordinary.

It creates time.

The woman is brought into his home. There is a process. She removes the clothing of her captivity. Her appearance changes. She mourns her father and mother for a month. The soldier's wife sees all of this unfolding. Nothing is hidden. Everything is out in the open. The battlefield disappears. The adrenaline recedes. And the question that remains is very simple: is this actually what you want when the moment is gone?

Every taivah works this way. There can be something perfectly healthy and perfectly permitted, but in the wrong place or at the wrong time it becomes harmful. Sometimes the difference between kedushah and destruction is not whether something is intrinsically good or bad. It is whether a person insists upon having it now, or whether he is capable of waiting until it is right.

IV. Davar Sheyesh Lo Matirin: A Conceptual Lens

There is a concept in halacha that provides an interesting lens for this discussion. It is not a formal equation between two halachos, but a conceptual parallel that sharpens what the Torah is doing with the yefas toar.

The concept is called *davar sheyesh lo matirin*, something that will later become permitted. The classic formulation is:

דבר שיש לו מתירין אפילו באלף לא בטיל

"Something that will eventually become permitted is not batel even among a thousand."
— Beitzah 3b

The classic example is an egg laid on Yom Tov. It cannot be eaten today, but tomorrow the exact same egg will be permitted. Ordinarily, prohibited food can sometimes become batel in a sufficiently large mixture. But Chazal say: wait. Why rely upon bittul today when tomorrow the thing itself will be in a state of complete heter? Chadash is another example. Nedarim can also enter this discussion under certain circumstances, because there can be a halachic mechanism for the prohibition to end.

There is an important qualification. If waiting will cause the food to spoil or materially deteriorate, then the normal logic of davar sheyesh lo matirin may not apply in the same way. If the thing is still going to be there tomorrow, halacha can tell a person to wait. If waiting destroys the thing entirely, that is a different halachic reality.

That distinction is fascinating, and perhaps it teaches us something about taivah as well. There is something in front of me. I want it. I have a tremendous desire for it. Maybe there is some technical way to access it right now. But what happens if I wait? If, once the emotional intensity disappears, I still recognize this as something worthwhile, perhaps the desire contained something real. But what if the desire itself spoils overnight? What if, once I have

clarity, I look back and ask: what was I thinking? Then perhaps I never truly wanted the thing. I wanted the moment.

V. The Alshich: Eye, Heart, and Limbs

The Alshich HaKadosh gives us an extraordinary reading of the yefas toar that sharpens this further. He begins with the teaching of Chazal:

עינא ולבא תרי סרסורי דעבירה

"The eye and the heart are the two agents of sin."
— Talmud Yerushalmi

And in the familiar expanded formulation:

העין רואה והלב חומד ואברים גומרים

"The eye sees, the heart desires, and the limbs complete the act."
— Rashi, Bamidbar 15:39

The Alshich maps this entire progression directly onto the yefas toar. וראית בשביה אשת יפת תואר: the eye sees. וחשקת בה: the heart desires. ולקחת לך לאשה: the limbs complete the act. Three stages, moving from stimulus to feeling to action. But the Alshich does not stop there. He asks: which of these two agents is the primary one? Because if we can identify the root, then through its rectification the other will be rectified as well. The answer, says the Alshich, is the heart. ממנו פנה ממנו יתד לעשות טובה או רעה: from it comes the cornerstone and from it comes the tent-peg, for good or for evil. The eyes are secondary. They deliver the stimulus, but what happens next is the heart's decision.

VI. Why the Heart Comes First

But then the Alshich asks a deeper question. The Torah elsewhere says:

ולא תתורו אחרי לבבכם ואחרי עיניכם

"Do not stray after your hearts and after your eyes."
— Bamidbar 15:39

If the eye sees first chronologically, why does the Torah place the heart before the eyes? The Alshich explains that the heart is the decisive element. Even if the eye sees, if the heart does not desire, the process stops. Seeing does not have to become desire. Desire does not have to become action. The Alshich goes further: mere sight without any stirring of the heart is not even considered a spiritual failure. He cites the Talmudic figure who said that women appeared to him like white geese. The eyes registered something. The heart did not respond. And that was enough. The process never began.

And then the Alshich brings the positive formulation from Mishlei:

תנה בני לבך לי ועיניך דרכי תצרנה

"Give me your heart, my son, and your eyes will observe my ways."
— Mishlei 23:26

Guard the heart, and the eyes follow. Good preparation of the heart helps the eyes refrain from gazing upon evil with intention, because the heart is the root of everything. This is not

merely a warning against sin. It is an instruction for building kedushah. A person who dedicates his heart to the service of Hashem does not need to fight every battle at the level of the eyes. The deeper work, the root work, is internal.

This is where Rabbi Gerzi's teaching on *daas* becomes so important. Instead of being completely swallowed up inside the emotional moment, a person can learn to create enough distance to observe himself. My higher cognitive function, my observational self, can step in and ask: is this something that is actually good for me right now? Or is this something that would feel extraordinary for five minutes, and immediately afterward I would feel sick, sad, spiritually distant, disconnected from Hashem, disconnected from my family, dealing with consequences I never stopped to consider?

The eye sees. Then there is a space. And inside that space, the heart chooses what to do with what it has seen. That may be exactly what the Torah is creating for the soldier. A space between וראית and וחשקת and ולקחת.

VII. The Chain: From Desire to Consequence

The Torah does not end the discussion with the yefas toar. There is a chain. Rashi famously connects these parshiyos, and the progression is striking. Immediately afterward, the Torah speaks about a man with two wives:

כי תהיין לאיש שתי נשים האחת אהובה והאחת שנואה

"If a man has two wives, one beloved and one hated."
— Devarim 21:15

Each has a son. The firstborn belongs to the hated wife. And the Torah anticipates another temptation: the father wants reality to conform to his emotions. He loves one woman more. He prefers her son. Perhaps he would like to treat that preferred son as the bechor. The Torah says no.

כי את הבכור בן השנואה יכיר לתת לו פי שנים

"He must recognize the actual firstborn, the son of the hated wife, and give him a double portion."
— Devarim 21:17

Feelings do not get to rewrite reality. The halacha of yerusha protects a legal and spiritual truth from being overwritten merely because the father prefers one child over another. During a person's lifetime, there are separate halachic mechanisms of gifts and transfers, but the laws of inheritance themselves stand firm. The Torah is drawing a line: your emotional preference does not change what is real.

And then comes the next step:

כי יהיה לאיש בן סורר ומורה

"If a man has a wayward and rebellious son."
— Devarim 21:18

The ben sorer u'moreh. A child whose relationship with appetite has itself become disordered. The father was confronted with taivah on the battlefield. Then he was confronted with favoritism in the home. Now the child is defined by uncontrolled consumption. A to B to C to

D. Each stage follows from the one before it, and the Torah asks us to look beyond the first moment. It is so easy to say: there is nothing wrong with this. I am completely fine. I can have this. I am allowed. But the Torah is asking a different question: what are you building? Not only what will this give you now. What will this become?

VIII. The Other Side: A Wife Who Waits

The haftarah presents almost the reverse emotional perspective. If the opening of the parsha places us on the battlefield with the man who is overwhelmed by desire, the haftarah allows us to stand with the one who feels left behind. Yeshayahu speaks to Yerushalayim as a woman who believes herself barren and abandoned:

רני עקרה לא ילדה פצחי רנה וצהלי לא חלה כי רבים בני שוממה מבני בעולה אמר ה׳

"Sing, barren woman who has not given birth; burst into song and rejoice, you who have not experienced labor, for the children of the desolate woman will be more numerous than the children of the married woman, says Hashem."
— Yeshayahu 54:1

And then:

אל תיראי כי לא תבושי ואל תכלמי כי לא תחפירי

"Do not fear, for you will not be ashamed; do not feel humiliated, for you will not be disgraced."
— Yeshayahu 54:4

And then this extraordinarily powerful image:

כי כאשה עזובה ועצובת רוח קראך ה׳ ואשת נעורים כי תמאס אמר אלקיך

"Hashem has called you like a woman abandoned and distressed in spirit, like a wife of one's youth who had been rejected."
— Yeshayahu 54:6

Klal Yisrael is so often described in the feminine side of our relationship with Hashem. There are times when we look at the world and ask: where is Hashem? Why do the nations around us seem to prosper while we struggle? Why do I feel as though I have not produced the fruits Hashem wants from me? Why do I feel rejected, forgotten? Perhaps, chas v'shalom, somebody else has replaced me.

IX. The Promise That Does Not Move

The Navi answers with an image of breathtaking power:

ברגע קטן עזבתיך וברחמים גדלים אקבצך

"For a small moment I abandoned you, but with great mercy I will gather you."
— Yeshayahu 54:7

Hashem compares His promise to the oath after the waters of Noach, that those waters would never again pass over the earth. And then:

כי ההרים ימושו והגבעות תמוטינה וחסדי מאתך לא ימוש וברית שלומי לא תמוט אמר מרחמך ה׳

"The mountains may move and the hills may totter, but My kindness will not depart from you, and My covenant of peace will not falter, says Hashem, Who has compassion upon you."
— Yeshayahu 54:10

We mistake moments for realities. That is true when we desire something, and it is equally true when we despair. A moment of desire tells us: I need this now, immediately, or I will lose it forever. A moment of pain tells us: this will never get better, this is permanent, this is the end. The Torah tells us not to confuse either one with eternity. The yefas toar teaches that if we create enough space, desire can change. The haftarah teaches that if we create enough space, despair can change too.

X. Letting Go as Victory

There is one more detail in the yefas toar that deserves attention. At the end of the process, if the man no longer wants her, he must let her go free. He cannot sell her. He cannot treat her as property. The desire can end, and if it ends, the world does not collapse.

Giving up a taivah does not mean losing. Sometimes allowing the desire to pass is itself the victory. We gain clarity. We gain strength. We discover that what seemed absolutely necessary in the moment was not actually necessary at all. The Tanya reminds us of our physical impermanence, that we come from somewhere and we are going somewhere, and the things that last are the things built with meaning, with purpose, with kedushah, and with an understanding of their long-term value. A momentary taivah, however overwhelming it feels in the instant, is not the measure of a life. What we build with patience and daas is.

XI. Elul: The Art of Waiting

We are now in Chodesh Elul, and this parsha could not be more perfectly timed. Elul is, in many ways, the month of *davar sheyesh lo matirin* as a lived practice. Many people take on extra stringencies during Elul. They become a little more machmir in areas where they normally rely on a leniency. They create distance from habits. They learn the art of not immediately being matir everything for themselves simply because they want it today.

We wait. We ask whether something belongs in our lives. We ask whether now is the right time for it. We stop treating every feeling as a command and every desire as a need.

אני לדודי ודודי לי

"I am my beloved's and my beloved is mine."
— Shir HaShirim 6:3

If we are the wife at home, so to speak, and Hashem is the King in the field, what are we doing to strengthen that relationship? How are we making ourselves ready for Hashem? And if we are the ones going out to war, because sometimes our supposedly optional wars do not feel very optional, how do we make sure that even the battles we choose are fought bereshus, in a kosher and yashar way?

XII. What Are You Building?

There are struggles at work, struggles in family life, struggles deep inside ourselves. There is the constant battle between the yetzer tov and the yetzer hara. The question Ki Seitzei places

before us is not whether we will encounter desire, conflict, or temptation. We will. The question is what we do in the space between seeing and taking.

The eye may see. The heart does not have to desire. The heart may desire. The limbs do not have to complete the act. And sometimes, after the pause, we discover that what seemed absolutely necessary was never necessary at all. Maybe the answer is: not now. Maybe the answer is: later. Maybe the answer is: never. And all three can be victories.

Going into this Shabbos and deeper into Elul, perhaps we can ask ourselves one question: what am I building when I act on what I want? And what might I build if I simply give myself enough time to see clearly?

חזק ואחזק

Good Shabbos, and a Shanah Tovah u'Metukah.

Reflection Questions

- *What is one area in my life where I am acting on desire without creating any pause between wanting and taking?*
- *Where am I confusing what I want right now with what I actually want?*
- *Is there a taivah I am holding onto simply because letting it go feels like losing, even though releasing it might be the real victory?*
- *Where in my life am I allowing my emotional preferences to rewrite reality, treating the child I prefer as the bechor while ignoring what is actually true?*
- *Am I approaching Elul as a genuine practice of waiting and daas, or am I going through the motions while still being matir everything for myself?*
- *What am I building? If I follow the chain from where I am now, through the next step and the step after that, where does this path actually lead?*